

**BEFORE THE BOARD OF COMMISSIONERS FOR JOSEPHINE COUNTY
STATE OF OREGON**

ORDINANCE NO. 2026-001

**AN ORDINANCE AMENDING CHAPTER 2.05 OF THE COUNTY CODE RELATING TO
THE MEETINGS OF THE BOARD OF COMMISSIONERS**

WHEREAS, pursuant to the County Charter, the Board of County Commissioners shall prescribe rules governing its meetings and procedures;

WHEREAS, the meeting rules were most recently amended by Ordinance 2024-002; and

WHEREAS it is in the best interests of the County to update the meeting rules to reflect state law;

NOW, THEREFORE, the Board of County Commissioners of Josephine County ordains as follows:

SECTION 1: TEXT AMENDMENTS

Chapter 2.05 of the Josephine County Code (JCC) is amended as follows (language ~~stricken~~ is deleted; double underlined language is new):

* * *

§ 2.05.030. Nonroutine sessions, emergency sessions and executive sessions.

- A. Emergency session and executive session meetings may be called, noticed and held as provided under the provisions of the Oregon Revised Statutes Public Meetings Laws and the Josephine County Charter.
- ~~B. Executive sessions for all public bodies, including the Board of County Commissioners, advisory boards and commissions, must be attended by an attorney, the Human Resources Director, and/or the property manager. No decisions can be made during the closed portion of the meeting, though the members can move toward consensus. The meeting must start with a public session during which an introduction is read prior to commencing the executive session, and must end with a public session during which the Chair provides a brief summary of each item that was discussed.~~
- C. Nonroutine and Emergency Meetings. When acting in accordance with law, any Commissioner has authority to schedule nonroutine and emergency meetings of the Board of County Commissioners and of any advisory board or commission. Department heads and chairs of advisory boards and commissions have comparable authority to authorize nonroutine and emergency meetings of their public body.
- ~~D. News Media. "Accredited representative of the news media" means a preapproved individual who gathers news and who is formally affiliated with an institutional news media entity. In order to obtain access to executive sessions, accredited representatives of the news media may register in the office of the Board of County Commissioners.~~

1. ~~Accredited representatives of the news media may attend executive sessions, except meetings involving labor negotiations and meetings involving litigation to which the media member is a party. Any representative of the news media who is also a lobbyist shall not be entitled to enter executive sessions that feature discussions which are relevant to the lobbyist's work.~~
2. ~~If during an executive session the members discuss matters outside the meeting's proper scope, it is always proper for media representatives to politely call the public body's attention to the fact that it has strayed from the specified subject or subjects to be discussed in executive session.~~

E. ~~Members of the news media and other persons allowed in executive session are prohibited from reporting on or disclosing any matters discussed during executive session. Any person who violates public meetings laws with intentional disregard for the law, or with willful misconduct, may be liable for a personal penalty of up to \$1,000 per occurrence. Confidentiality of executive session discussions may be waived only by majority vote of the Board of Commissioners.~~

SECTION 2: SEVERABILITY

Should any section or provision of this ordinance be declared by a court or tribunal of competent jurisdiction to be invalid, that decision shall not affect the validity of the ordinance as a whole or any part thereof, other than the part so declared to be invalid.

SECTION 3: AFFIRMATION

Except as specifically amended by the provisions of this ordinance, the Josephine County Code, as previously adopted and amended, is hereby affirmed.

SECTION 4: EFFECTIVE DATE

First reading by the Board of County Commissioners the ____ day of _____, 2026.
Second reading and adoption by the Board of County Commissioners at least thirteen (13) days from the first reading, this ____ day of _____, 2026. This Ordinance shall take effect ninety (90) days after its adoption by the Board of County Commissioners.

JOSEPHINE COUNTY BOARD OF COMMISSIONERS

Ron Smith, Chair

Colene Martin, Vice-Chair

Gary Richardson, Commissioner

APPROVED AS TO FORM:

M. Wally Hicks, Legal Counsel

Item 4 a

**BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY
STATE OF OREGON**

In the Matter of Annexation to the)
JOSEPHINE COMMUNITY LIBRARY DISTRICT) **ORDER NO. 2026-029**
By Petition of Landowner, Without Election)

WHEREAS, this matter is before the Josephine County Board of Commissioners upon a petition of landowner for annexation to a district, filed pursuant to ORS 198.857, as follows:

DISTRICT NAME	Josephine Community Library District
DISTRICT TYPE - PRINCIPAL ACT	Library District - ORS Chapter 357.216 to 357.286
PETITIONER(S)	DRAKE LOVING TRUST
MAILING ADDRESS	1200 Jumpoff Joe Creek Rd Grants Pass OR 97526
SITUS ADDRESS	1200 Jumpoff Joe Creek Rd Grants Pass OR 97526
DATE FILED WITH BOARD	May 19, 2026
MAP/TAX LOT	36-05-29-D0-003401-00
NO. OF ACRES	5.00
LEGAL DESCRIPTION / MAP	Attached hereto as Exhibits A and B

WHEREAS, the Petition was accompanied by:

- (1) A certification from the Josephine County Assessor that the petition is signed by the requisite number of qualified landowners of the land proposed to be annexed to the district, as required by ORS 198.765.
- (2) A written endorsement of approval by the District Board.
- (3) A description of the land to be annexed to the district.

WHEREAS, following proper notice, the Board of County Commissioners having held a public hearing on the petition pursuant to ORS 198.857(3), and having considered the criteria prescribed by ORS 198.857(4), FINDS that the petition satisfies the requirements of ORS 198.857 and declares its approval of the petition;

NOW, THEREFORE, IT IS HEREBY ORDERED that the Josephine County Board of Commissioners declares that the parcel of land, described in Exhibit A attached hereto and incorporated herein, is annexed to the **JOSEPHINE COMMUNITY LIBRARY DISTRICT**.

IT IS FURTHER ORDERED that in accordance with ORS 198.780, duplicate copies of this order of district annexation shall be filed with the Department of Revenue, the Secretary of State, the Josephine County Clerk, and the Josephine County Assessor within ten (10) days of the date this Order is entered.

DONE and DATED this 8th day of July 2026

**JOSEPHINE COUNTY
BOARD OF COMMISSIONERS**

Ron A. Smith, Chair

Colene M. Martin, Vice-Chair

Gary L. Richardson, Commissioner

RECEIVED

MAY 19 2026

JOSEPHINE
COUNTY CLERK

I HEREBY CERTIFY THAT ALL SIGNATURES ON THIS PETITION ARE THOSE OF PROPERTY OWNERS OF AREA TO BE ANNEXED TO THIS DISTRICT

SIGNATURE OF ASSESSOR OR DEPUTY



DATE OF CERTIFICATION: 5-19-26

DATE SUBMITTED TO COUNTY CLERK FOR FILING WITH THE BOARD OF COUNTY COMMISSIONERS: _____

**BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY
STATE OF OREGON**

IN THE MATTER OF THE ANNEXATION)
OF A SINGLE PARCEL OF PROPERTY) PETITION
INTO THE Josephine Community Library)
DISTRICT WITHOUT ELECTION)

PETITIONERS (Contact Information) [ORS 198.760(3)]:

Name	Mailing Address	Phone Number	Email Address (optional)
DRAKE LOVING TRUST	1200 JUMPOFF JOE CRK RD GRANTS PASS, OR 97526	confidential contact	
		library director if needed	

(for additional petitioners, please add additional pages)

DATE SUBMITTED TO COUNTY ASSESSOR: 5-12-2026

The undersigned do hereby petition the Board of County Commissioners of Josephine County, Oregon for annexation of land to a special district and in support thereof do state as follows:

1. [ORS 198.705] The type of special district to which land is being annexed is: Library District.
2. [ORS 198.750(1)] This petition is filed pursuant to ORS 198.857.
3. Josephine County is the only affected county. The name and principal Act of the district to which land is being annexed is: Josephine Community Library District. Principal Act: ORS 357.

4. The names and principal Acts of all other affected districts are:

Name: <u>Rogue Community College</u>	Principal Act: ORS <u>341</u> .
Name: <u>Southern Oregon ESD</u>	Principal Act: ORS <u>334</u> .
Name: <u>4H/Extension Service</u>	Principal Act: ORS <u>451</u> .
Name: <u>JOCO LAW ENFORCEMENT DISTRICT</u>	Principal Act: ORS <u>451</u> .
Name: <u>3 RIVERS SCHOOL DISTRICT</u>	Principal Act: ORS <u>341</u> .
Name: _____	Principal Act: ORS _____.

5. This petition is for annexation of land to the above-named district.
6. The territory subject to the petition is (strike out one) *inhabited/uninhabited*.
7. The annexation (strike out one) *is/is not* to be subject to any proposed terms and conditions. If it is, they are set forth as follows:
- _____
- _____
8. The signature sheets attached hereto are a part of this petition. The signature sheets are signed by 100% of the owners of the single parcel of property subject to this petition.
9. This petition requires that proceedings be taken for the annexation of the specified land to the district.
10. [ORS 197.750(2)] Attached hereto is a description of the boundaries of the territory proposed to be annexed to the district.
11. [ORS 197.750(4)] This petition is verified by the affidavit of the person circulating the petition.
12. [ORS 198.760(1)] Each person signing the petition has also printed the person's name and has added after the signature date of signing.
13. If the signer is a legal representative of the owner, the signature is accompanied by a certified copy of the signer's authority to sign as a legal representative.
14. [ORS 198.765(1)] All signatures on the signature sheets attached to this petition have been secured within six (6) months of the date on which the first signature on the petition was affixed.
15. [ORS 198.800] This petition has been approved by endorsement thereon by any agency required by the principal Act to endorse or approve the petition.

[ORS 198.850] This petition has been approved by endorsement thereon by the board of the special district to which the land is being annexed.

16. [ORS 198.860] The petitioners understand that upon annexation of the property to the special district the property shall become subject to the permanent rate limit established, any local option taxes of the district, and any outstanding indebtedness of the district (bonded or otherwise), unless otherwise provided in a debt distribution plan.

Initials of all Petitioners: JD MED

17. [ORS 198.775] A security deposit in the form of \$60 cash or check is attached to this petition. The petitioners understand that if the annexation is successful the deposit shall be returned to the petitioners (unless it is posted by the special district on the petitioners' behalf), but if the annexation is not successful the county shall retain the portion of the cash deposit to cover costs. If the bond or cash deposit does not cover the county's costs, the petitioners shall pay to the County Treasurer the amount of excess costs.
18. The petitioners are aware that this form is provided to them by Josephine County as a convenience only and that Josephine County cannot give petitioners any legal advice concerning the annexation of land to the district.
19. The principal Act of this proposed special district additionally requires that this petition state the following: _____
20. Is any part of the territory subject to this petition for annexation within a city?
- ☐ Yes ☒ No If yes, then this petition must be accompanied by a certified copy of a resolution of the governing body of the city approving the petition.
21. Is any part of the territory subject to this petition for annexation outside a city's limits but within a city's urban growth boundary? ☐ YES ☒ NO

22. ATTACHMENTS TO PETITION:

Attached hereto and by this reference incorporated herein are the following attachments: (check as applicable)

- x Signature sheets consisting of 2 number of pages.
- x Description of the boundaries of the land to be annexed.
- Certified copies of signers authority to sign as a legal representative consisting of number of pages
- x Endorsement by the board of the special district to which land is being annexed.
- x Security Deposit in the form of bond or x cash.
- x Other attachments or maps consisting of 1 number of pages.

SIGNATURE SHEET

NOTE: Each of the owners of a single parcel of property subject to this petition must provide a signature sheet. If the signer is a legal representative of the owner, the signature shall be accompanied by a certified copy of the signer's authority to sign as a legal representative.

SIGNATURE OF OWNER OF THE PARCEL OF LAND	
PRINTED NAME	DRAKE MALCOLM TRUSTEE
DATE SIGNED	<i>March 11, 2026</i>
LEGAL REPRESENTATIVE OF OWNER?	YES [] NO []
NUMBER OF ACRES OF THE LAND OWNED BY THE SIGNER	5.00 acres
COUNTY	Josephine County
ASSESSOR'S MAP AND TAX LOT NUMBER	36-05-29-D0-003401-00

CERTIFICATION:

I, (print name) Jessica Perez verify that I witnessed the signing of this signatures sheet by the individual whose signature appears on this sheet.

SIGNATURE of the person making the certification: 

SIGNATURE SHEET

NOTE: Each of the owners of a single parcel of property subject to this petition must provide a signature sheet. If the signer is a legal representative of the owner, the signature shall be accompanied by a certified copy of the signer's authority to sign as a legal representative.

SIGNATURE OF OWNER OF THE PARCEL OF LAND	
PRINTED NAME	DRAKE TOMMI TRUSTEE
DATE SIGNED	MAR 11, 2025
LEGAL REPRESENTATIVE OF OWNER?	YES ☐ NO ☒
NUMBER OF ACRES OF THE LAND OWNED BY THE SIGNER	5.00 acres
COUNTY	Josephine County
ASSESSOR'S MAP AND TAX LOT NUMBER	36-05-29-D0-003401-00

CERTIFICATION:

I, (print name) Jessica Perer verify that I witnessed the signing of this signatures sheet by the individual whose signature appears on this sheet.

SIGNATURE of the person making the certification: 

DISTRICT ENDORSEMENT OF APPROVAL

The District Board, being the governing body of the below listed, district, by and through its Chairman and Secretary, hereby certify that the attached petition for annexation to said district of the properties owned by petitioner herein, has been considered by said governing body and by vote of said board, at a special meeting thereof, said petition has been approved.

Josephine Community Library District

District Name

Chairman: Gina Main Agosta

Secretary: Vate Jasny



Legal Description

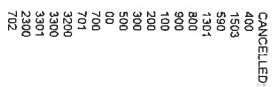
36-05-29-D0-003401-00

Josephine County, Oregon

Lot #1, GLEN CREST ESTATES, in Josephine County, Oregon.

Exhibit _____

36 05 29D





36-05-29-D0-003401-00

Item 4b

**BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY
STATE OF OREGON**

In the Matter of Annexation to the)
JOSEPHINE COMMUNITY LIBRARY DISTRICT) **ORDER NO. 2026-030**
By Petition of Landowner, Without Election)

WHEREAS, this matter is before the Josephine County Board of Commissioners upon a petition of landowner for annexation to a district, filed pursuant to ORS 198.857, as follows:

DISTRICT NAME	Josephine Community Library District
DISTRICT TYPE - PRINCIPAL ACT	Library District - ORS Chapter 357.216 to 357.286
PETITIONER(S)	CARLSON, DAPHNE & DOWNES, SKYLAR
MAILING ADDRESS	2366 W JONES CREEK RD, GRANTS PASS, OR 97526
SITUS ADDRESS	2366 W JONES CREEK RD, GRANTS PASS, OR 97526
DATE FILED WITH BOARD	May 19, 2026
MAP/TAX LOT	36-05-04-00-000902-00
NO. OF ACRES	7.97
LEGAL DESCRIPTION / MAP	Attached hereto as Exhibits A and B

WHEREAS, the Petition was accompanied by:

- (1) A certification from the Josephine County Assessor that the petition is signed by the requisite number of qualified landowners of the land proposed to be annexed to the district, as required by ORS 198.765.
- (2) A written endorsement of approval by the District Board.
- (3) A description of the land to be annexed to the district.

WHEREAS, following proper notice, the Board of County Commissioners having held a public hearing on the petition pursuant to ORS 198.857(3), and having considered the criteria prescribed by ORS 198.857(4), FINDS that the petition satisfies the requirements of ORS 198.857 and declares its approval of the petition;

NOW, THEREFORE, IT IS HEREBY ORDERED that the Josephine County Board of Commissioners declares that the parcel of land, described in Exhibit A attached hereto and incorporated herein, is annexed to the **JOSEPHINE COMMUNITY LIBRARY DISTRICT**.

IT IS FURTHER ORDERED that in accordance with ORS 198.780, duplicate copies of this order of district annexation shall be filed with the Department of Revenue, the Secretary of State, the Josephine County Clerk, and the Josephine County Assessor within ten (10) days of the date this Order is entered.

DONE and DATED this 8th day of July 2026

**JOSEPHINE COUNTY
BOARD OF COMMISSIONERS**

Ron A. Smith, Chair

Colene M. Martin, Vice-Chair

Gary L. Richardson, Commissioner

RECEIVED

MAY 19 2026

JOSEPHINE
COUNTY CLERK

I HEREBY CERTIFY THAT ALL SIGNATURES ON THIS PETITION ARE THOSE OF PROPERTY OWNERS OF AREA TO BE ANNEXED TO THIS DISTRICT

SIGNATURE OF ASSESSOR OR DEPUTY

Hale Smith

DATE OF CERTIFICATION: 5-19-26

DATE SUBMITTED TO COUNTY CLERK FOR FILING WITH THE BOARD OF COUNTY COMMISSIONERS: _____

BEFORE THE BOARD OF COUNTY COMMISSIONERS FOR JOSEPHINE COUNTY
STATE OF OREGON

IN THE MATTER OF THE ANNEXATION)
OF A SINGLE PARCEL OF PROPERTY) PETITION
INTO THE Josephine Community Library)
DISTRICT WITHOUT ELECTION)

PETITIONERS (Contact Information) [ORS 198.760(3)]:

Name	Mailing Address	Phone Number	Email Address (optional)
CARLSON, DAPHNE	2366 W JONES CREEK RD GRANTS PASS, OR 97526	confidential contact	
DOWNES, SKYLAR	2366 W JONES CREEK RD GRANTS PASS, OR 97526	library director if needed	

(for additional petitioners, please add additional pages)

DATE SUBMITTED TO COUNTY ASSESSOR: 5-12-2026

The undersigned do hereby petition the Board of County Commissioners of Josephine County, Oregon for annexation of land to a special district and in support thereof do state as follows:

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Name: <u>Southern Oregon ESD</u>	Principal Act: ORS <u>334</u>
Name: <u>4H/Extension Service</u>	Principal Act: ORS <u>451</u>
Name: <u>JOCO LAW ENFORCEMENT DISTRICT</u>	Principal Act: ORS <u>451</u>
Name: _____	Principal Act: ORS _____
Name: _____	Principal Act: ORS _____

5. This petition is for annexation of land to the above-named district.
6. The territory subject to the petition is (strike out one) *inhabited/uninhabited*.
7. The annexation (strike out one) *is/is not* to be subject to any proposed terms and conditions. If it is, they are set forth as follows:
- _____
- _____
8. The signature sheets attached hereto are a part of this petition. The signature sheets are signed by 100% of the owners of the single parcel of property subject to this petition.
9. This petition requires that proceedings be taken for the annexation of the specified land to the district.
10. [ORS 197.750(2)] Attached hereto is a description of the boundaries of the territory proposed to be annexed to the district.
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15. [ORS 198.800] This petition has been approved by endorsement thereon by any agency required by the principal Act to endorse or approve the petition.

[ORS 198.850] This petition has been approved by endorsement thereon by the board of the special district to which the land is being annexed.

16. [ORS 198.860] The petitioners understand that upon annexation of the property to the special district the property shall become subject to the permanent rate limit established, any local option taxes of the district, and any outstanding indebtedness of the district (bonded or otherwise), unless otherwise provided in a debt distribution plan.

Initials of all Petitioners: JH De

17. [ORS 198.775] A security deposit in the form of \$60 cash or check is attached to this petition. The petitioners understand that if the annexation is successful the deposit shall be returned to the petitioners (unless it is posted by the special district on the petitioners' behalf), but if the annexation is not successful the county shall retain the portion of the cash deposit to cover costs. If the bond or cash deposit does not cover the county's costs, the petitioners shall pay to the County Treasurer the amount of excess costs.

18. The petitioners are aware that this form is provided to them by Josephine County as a convenience only and that Josephine County cannot give petitioners any legal advice concerning the annexation of land to the district.

19. The principal Act of this proposed special district additionally requires that this petition state the following: _____

20. Is any part of the territory subject to this petition for annexation within a city?

☐ Yes ☒ No If yes, then this petition must be accompanied by a certified copy of a resolution of the governing body of the city approving the petition.

21. Is any part of the territory subject to this petition for annexation outside a city's limits but within a city's urban growth boundary? ☐ YES ☒ NO

22. ATTACHMENTS TO PETITION:

Attached hereto and by this reference incorporated herein are the following attachments: (check as applicable)

- X Signature sheets consisting of 2 number of pages.
 X Description of the boundaries of the land to be annexed.
 Certified copies of signers authority to sign as a legal representative consisting of number of pages
 X Endorsement by the board of the special district to which land is being annexed.
 X Security Deposit in the form of bond or X cash.
 X Other attachments or maps consisting of 1 number of pages.

SIGNATURE SHEET

NOTE: Each of the owners of a single parcel of property subject to this petition must provide a signature sheet. If the signer is a legal representative of the owner, the signature shall be accompanied by a certified copy of the signer's authority to sign as a legal representative.

SIGNATURE OF OWNER OF THE PARCEL OF LAND	
PRINTED NAME	CARLSON, DAPHNE
DATE SIGNED	2/26/26
LEGAL REPRESENTATIVE OF OWNER?	YES [] NO []
NUMBER OF ACRES OF THE LAND OWNED BY THE SIGNER	7.97 acres
COUNTY	Josephine County
ASSESSOR'S MAP AND TAX LOT NUMBER	36-05-04-00-000902-00

CERTIFICATION:

I, (print name) Tusia Perez verify that I witnessed the signing of this signatures sheet by the individual whose signature appears on this sheet.

SIGNATURE of the person making the certification: 

SIGNATURE SHEET

NOTE: Each of the owners of a single parcel of property subject to this petition must provide a signature sheet. If the signer is a legal representative of the owner, the signature shall be accompanied by a certified copy of the signer's authority to sign as a legal representative.

SIGNATURE OF OWNER OF THE PARCEL OF LAND	
PRINTED NAME	DOWNES, SKYLAR
DATE SIGNED	Feb 26, 2026
LEGAL REPRESENTATIVE OF OWNER?	YES [] NO ☒
NUMBER OF ACRES OF THE LAND OWNED BY THE SIGNER	7.97 acres
COUNTY	Josephine County
ASSESSOR'S MAP AND TAX LOT NUMBER	36-05-04-00-000902-00

CERTIFICATION:

I, (print name) Jessica Perez verify that I witnessed the signing of this signatures sheet by the individual whose signature appears on this sheet.

SIGNATURE of the person making the certification: 

DISTRICT ENDORSEMENT OF APPROVAL

The District Board, being the governing body of the below listed, district, by and through its Chairman and Secretary, hereby certify that the attached petition for annexation to said district of the properties owned by petitioner herein, has been considered by said governing body and by vote of said board, at a special meeting thereof, said petition has been approved.

Josephine Community Library District

District Name

Chairman: Gene Mair Agosta

Secretary: Kate Jasky



APPROVED

Legal Description

36-05-04-00-000902-00

Josephine County, Oregon

PARCEL 2 OF PARTITION PLAT NO. 1997-084, LOCATED IN THE SOUTHEAST QUARTER OF SECTION 4, TOWNSHIP 36 SOUTH, RANGE 5 WEST OF THE WILLAMETTE MERIDIAN, JOSEPHINE COUNTY, OREGON.

Exhibit _____

THIS MAP WAS PREPARED FOR
ASSESSMENT PURPOSE ONLY

SECTION 4 T.36S. R.5W. W.M.
JOSEPHINE COUNTY
1" = 400'

36S05W04

CANCELLED:

- 1501
- 700
- 1001
- 1302
- 980
- 951
- 952
- 993
- 994
- 1301-90
- 890
- 881
- 895



36S05W04

36-05-04-00-000902-00



1

